

Emerging Surveillance Technologies and Municipal Governance in Michigan

ALPRs, Drones, and the Regulatory Gap

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Executive Summary

Michigan municipalities are adopting surveillance technologies, including automatic license plate readers (ALPRs), unmanned aerial systems (drones), and integrated real-time crime center platforms, at a pace that has outrun the state's regulatory capacity. The result is a governance vacuum: local agencies operate powerful surveillance infrastructure under inconsistent internal policies, widely varying vendor contracts, and no comprehensive state framework.

This brief examines two converging legislative efforts. House Bills 5492 and 5493, introduced by Representatives Wilson (D-Ypsilanti) and Wozniak (R-Shelby Township), would establish Michigan's first ALPR governance standards. The 15-bill SHIELD package, sponsored by Representative Bruck (R-Erie), would create a statewide drone regulatory framework. Together, these proposals represent the most significant surveillance governance effort in Michigan's legislative history.

Key Finding: Michigan has no comprehensive legal framework governing either ALPR or drone surveillance at the state level, even as its municipalities operate one of the densest ALPR networks in the Midwest and the state legislature considers the most ambitious drone regulation package in the country. At least 16 states have enacted ALPR statutes and the federal SAFER SKIES Act has already created a counter-drone framework that Michigan's SHIELD package partially duplicates.

1. The Convergence Problem

Each surveillance technology, considered in isolation, raises significant but manageable policy questions. Considered together, the policy challenge multiplies. ALPR systems capture license plate data at fixed and mobile points across a municipality. Drone platforms add aerial video surveillance and can respond to incidents in real time. When these systems operate on a single vendor platform, as Flock Safety now offers, they create an integrated surveillance capability that no single municipal policy, written for a single technology, can adequately govern.

The vendor consolidation dynamic is particularly relevant in Michigan. Flock Safety's integrated platform combines ALPRs, fixed cameras, drones, and investigative software. As Berkeley, California's police chief stated in March 2026 testimony, no other single vendor can deliver all four capabilities on one unified platform. This consolidation means that a municipality's decision to adopt ALPRs often becomes, over time, a decision to adopt an entire surveillance ecosystem, with each new capability governed by the same vendor contract rather than by independent municipal policy.

2. Automatic License Plate Readers in Michigan

2.1 Scale and Adoption

ALPR adoption in Michigan has accelerated significantly since 2020. Flock Safety, the dominant vendor, operates a nationwide network processing approximately 20 billion vehicle scans per month. Fewer than 0.1 percent of scans typically correspond to a vehicle of active law enforcement interest. The remaining records document the routine movements of individuals with no connection to criminal activity.

Nearly one in three Michigan police agencies now uses Flock license plate readers. The company's expansion strategy relies on a documented pattern: free trial deployments that create operational dependency before converting to paid contracts. Oakland County approved a Flock drone deployment in a session that drew significant public backlash over the process by which the decision was made.

2.2 Federal Access Concerns

Investigations by the Electronic Frontier Foundation and 404 Media documented that federal agencies, including Immigration and Customs Enforcement (ICE), Customs and Border Protection (CBP), the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF), and the Air Force, accessed local ALPR databases. In one documented case, law enforcement used Flock's nationwide camera network to search for a woman suspected of self-administering an abortion. In another, more than 50 federal, state, and local agencies ran hundreds of searches through Flock's national network in connection with protest activity.

Mountain View, California disabled all 30 of its Flock cameras in February 2026 after an audit revealed unauthorized federal access. Cambridge, Massachusetts terminated its contract after Flock installed two cameras without the city's knowledge or authorization. At least 30 cities have canceled their Flock contracts since early 2025, citing unauthorized federal access, data retention practices, and contractual transparency failures.

2.3 Michigan's Legislative Response: HB 5492/5493

House Bills 5492 and 5493, introduced January 2026 with 24 bipartisan co-sponsors, would establish Michigan's first ALPR governance framework. Key provisions include a 14-day data retention limit (among the shortest nationally), warrant requirements for non-real-time data access, quarterly public reporting, and an evidentiary exclusion rule for data obtained in violation of the act. The bills have been referred to the House Committee on Judiciary. A committee hearing with testimony is expected by end of April 2026.

3. Drones and the SHIELD Package

3.1 The Federal Landscape

The SAFER SKIES Act, passed in the FY 2026 National Defense Authorization Act and signed December 18, 2025, created the first federal framework allowing state, local, and tribal law enforcement to detect, track, and disable drones that pose a credible threat at sporting events and critical infrastructure. FEMA grants are available to fund the necessary equipment. The FBI is training and certifying state and local officers under this framework. Michigan is already partnering with the FBI on drone enforcement near Detroit Metro Airport.

3.2 Michigan's SHIELD Package

The 15-bill SHIELD (Securing Homeland and Infrastructure with Emerging Laws for Drones) package, sponsored by Representative Bruck (R-Erie), would create no-fly zones over critical infrastructure, authorize police drone takedowns, mandate a state-run geofencing application for all drone operators, ban drones from federally designated companies of concern (primarily Chinese manufacturers including DJI), and empower the Michigan Department of Transportation to maintain a state drone registry. The package passed the House Committee on Transportation and Infrastructure in March 2026 and has moved to the House floor.

Implementation cost estimates range from \$20 million to \$60 million, driven primarily by the proposed state geofencing application. The Michigan Aeronautics Commission chair testified that the package could create uncertainty by co-mingling federal and state authority. Several provisions raise federal preemption concerns, as the FAA maintains exclusive authority over the national airspace system.

3.3 Commercial Drone Delivery

Amazon launched Prime Air drone delivery in Pontiac, Michigan in November 2025 and expanded to Hazel Park, operating two drone delivery facilities in metro Detroit. Additional municipalities will face drone delivery proposals as the industry expands. Municipal leaders currently lack clear guidance on zoning implications, noise considerations, privacy concerns, liability frameworks, and minimum governance standards for commercial drone operations.

4. The Municipal Governance Gap

In the absence of state law, surveillance technology governance varies municipality by municipality. Some agencies have adopted internal policies. Many have none. The result is that vendor contracts, rather than public policy, often define the practical governance framework for surveillance technology in Michigan communities.

This gap creates several documented risks:

- Data retention periods set by vendor default rather than by public deliberation.

- Access controls defined in contract terms that municipalities may not fully understand or monitor.
- Federal agency access to local surveillance data without municipal knowledge or consent.
- Procurement decisions made through free trial deployments that bypass normal budget and public comment processes.
- No standardized public reporting on system use, matches found, arrests made, or data-sharing incidents.
- No equity-informed guidelines for camera or drone deployment patterns.

5. Equity and Disparate Impact

Research from the Brennan Center for Justice and the Electronic Frontier Foundation has documented that ALPR camera placement tends to concentrate in lower-income neighborhoods and communities of color. Flock's own expansion strategy targets communities experiencing crime surges, which in Michigan disproportionately correlate with economic disadvantage.

The equity concern extends beyond camera placement to data use. Federal immigration enforcement agencies have searched local ALPR databases, raising concerns about the impact on immigrant communities. The use of Flock's national network to track protest activity raises First Amendment concerns. Any governance framework that addresses only data retention and warrant requirements without also considering deployment patterns and use cases will leave significant equity gaps unaddressed.

6. Comparative State Landscape

State	ALPR Retention	Warrant Req.	Reporting	Notes
California	60 days	Yes	Annual audit	Mountain View, Santa Cruz, Los Altos Hills all canceled Flock contracts in 2026.
Washington	Varies	Yes (SB 6002)	Required	SB 6002 effective March 2026. Multiple cities canceled Flock before law took effect.
Maine	21 days	Yes	Required	Among the earliest comprehensive ALPR statutes.
Colorado	Proposed	Proposed	Proposed	Bill requiring warrants for ALPR searches advanced through committee in 2026.
Michigan (proposed)	14 days	Yes	Quarterly	HB 5492/5493. Among the shortest retention limits and most frequent reporting nationally.

7. Policy Recommendations

The convergence of ALPR expansion, drone deployment, vendor platform consolidation, and federal access concerns creates a policy environment that requires coordinated rather than piecemeal governance. The evidence presented in this brief supports the following recommendations:

- The Legislature should establish unified surveillance governance standards that address multiple technologies (ALPRs, drones, real-time crime centers) through a single framework rather than regulating each in isolation. When these systems operate on integrated vendor platforms, single-technology policies leave governance gaps.
- Data retention limits that balance investigative utility with privacy protection, applied consistently across technology types.
- Warrant or judicial oversight requirements for non-real-time access to surveillance data.
- Transparency and public reporting obligations for all governmental surveillance technology operators.
- Equity-informed guidelines for deployment patterns and use restrictions.
- Clear rules governing cross-jurisdictional and federal data sharing, including notification requirements when federal agencies access local data.
- Procurement standards that ensure contractual transparency, audit rights, and meaningful public comment before adoption.
- HB 5492/5493 (ALPR governance) and the SHIELD package (drone governance) should be explicitly coordinated to prevent conflicting or duplicative frameworks. Flock Safety now offers both ALPR and drone platforms on a single integrated system, making technology-specific regulation insufficient.
- Federal preemption analysis for any state-level drone provisions that intersect with FAA airspace authority or SAFER SKIES Act counter-drone provisions.

These recommendations are presented as nonpartisan, evidence-based conclusions grounded in the research documented in this brief, comparative analysis of 16+ state surveillance governance frameworks, and the current federal regulatory trajectory under the SAFER SKIES Act.

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